

IN THE HIGH COURT OF JHARKHAND AT RANCHI

S.A. No. 402 of 2016

1. Deo Nandan Gope

2. Umesh Gope

Both S/o Goberdhan Gope, R/o Village- Bujurgai- Zamira, P.S. & P.O. Patratu, District- Ramgarh

... ... **Defendants/Respondents/Appellants**

Versus

1. Suraj Narayan Gope (**dead and substituted vide order dated 11/07/24**)

1(a) Sakuntala Devi W/o Late Suraj Narayan Gope

1(b) Rinku Yadav, Son of Late Suraj Narayan Gope,

1(c) Mithun Yadav, Son of Late Suraj Narayan Gope,

All are residents of Bujurga, P.O. & P.S. Patratu, District- Ranchi

2. Santosh Gope, S/o Late Rama Gope @ Rima Gope, Resident of Village- Bujurga Zamira, P.O. & P.S. – Patratu, District – Ramgarh.

3. Smt. Sankari Devi, W/o Prabhu Gope

4. Smt. Hiran Devi, W/o Kunwar Gope,
Both D/o Late Rama Gope @ Rima Gope,

Resident of Village Hesalong, P.O. & P.S. – Giddi, District – Hazaribagh.

5. Smt. Peyaso Devi, W/o Mahadeo Gope, D/o Late Rama Gope @ Rima Gope, Resident of Village – Bujurga Zamira, P.O. & P.S. – Patratu, District – Ramgarh.

6. Lato Gope @ Latlaha Gope, S/o Late Bhola Gope, Resident of Village- Bujurg Zamira, P.O. & P.S.- Patratu, District – Ramgarh.

7. Binu Gope @ Bindeshwari Gope, S/o Late Bhola Gope (**dead and substituted vide order dated 23/09/24**)

7 (a) Antri Devi, W/o Late Binu Gope

7 (b) Prem Gope, S/o Late Binu Gope

7 (c) Sarita Devi, W/o Uday Gope, D/o Late Binu Gope alias Bindeshwari Gope Resident of village Bailgadda, P.O. Dunduwa, P.S. Simariya, Dist. Chatra

7 (d) Chhotelal Gope, Son of Binu Gope @ Bindeshwari Gope

7 (e) Vikash Gope, Son of Late Binu Gope @ Bindeshwari Gope

7 (f) Sunita Kumari, Daughter of Late Binu Gope @ Bindeshwari Gope

All are residents of Bujurg Jamira, P.O. Barkakana, P.S. – Patratu, District Ramgarh.

... **Plaintiffs/Cross Objectors/Respondents**

8. Most. Parul, W/o Late Dimar Gope, Resident of Village Bujurga – Zamira, P.O. & P.S. Patratu, District – Ramgarh.
9. Smt. Khema Devi, W/o Mahabir Gope, Resident of Village – Kanjagi, P.O. & P.S. Mandu, District – Ramgarh.
10. Damodar Ohdar
11. Janardan Ohdar
Both S/o Late Kalindar Yadav, Resident of Village – Pusho, P.O. & P.S. Sisai, District- Gumla.
12. Ram Sahay Gope
13. Mukul Gope
Both S/o Late Ledo Gope, Resident of Village- Telyatu, P.O. & P.S. – Patratu, District – Ramgarh.

..... Defendants/Appellants/Proforma Respondents

With

S.A. No. 393 of 2016

1. Deo Nandan Gope
2. Umesh Gope
Both S/o Goberdhan Gope, R/o Village- Bujurgaj- Zamira, P.S. & P.O. Patratu, District – Hazaribagh, at present – Ramgarh.

... ... Defendants/Appellants/Appellants

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2. Santosh Gope, S/o Late Rama Gope @ Rima Gope, Resident of Village- Bujurga Zamira, P.O. & P.S. – Patratu, District – Ramgarh.
3. Smt. Sankari Devi, W/o Prabhu Gope
4. Smt. Hiran Devi, W/o Kunwar Gope,
Both D/o Late Rama Gope @ Rima Gope,
Respondent no.3 Resident of Village Hesalong, P.O. & P.S. – Giddi, District – Hazaribagh.

Resident No.4 R/o -Bujurg Zamira, P.S. – Patratu, District – Hazaribagh at present – Ramgarh.

5. Smt. Peyaso Devi, W/o Mahadeo Gope, D/o Late Rama Gope @ Rima Gope, Resident of Village – Bujurga Zamira, P.O. & P.S. – Patratu, District – Ramgarh.
6. Lato Gope @ Latlaha Gope, S/o Late Bhola Gope, Resident of Village- Bujurg Zamira, P.O. & P.S.- Patratu, District – Hazaribagh at present – Ramgarh.
7. Binu Gope @ Bindeshwari Gope (**dead and substituted vide order dated 23/09/24**)

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7 (d) Chhotelal Gope, S/o Late Binu Gope @ Bindeshwari Gope

7 (e) Vikash Gope, S/o Late Binu Gope @ Bindeshwari Gope

7 (f) Sunita Kumari, Daughter of Late Binu Gope @ Bindeshwari Gope

Respondent Nos. 7 (a), (b), (d), (e) & (f) are residents of Bujurg Jamira, P.O. Barkakana, P.S. – Patratu, District Ramgarh, Jharkhand, Pin 829102 and

Respondent no. 7(c) is resident of village – Bailgadda, P.O. Dunduwa, P.S. Simariya, District Chatra, Jharkhand, Pin 825103.

... **Plaintiffs/Respondents/Respondents**

8. Most. Parul, W/o Late Dimar Gope, Resident of Village Bujurga – Zamira, P.O. & P.S. Patratu, District – Ramgarh.
9. Smt. Khema, W/o Mahabir Gope, Resident of Village – Kanjagi, P.O. & P.S. Mandu, District – Ramgarh.
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12. Ram Sahay Gope

13. Mukul Gope

Both S/o Late Ledo Gope, Resident of Village- Telyatu, P.O. &
P.S. – Patratu, District – Ramgarh.

..... **Defendants/Appellants/Proforma Respondents**

CORAM :HON'BLE MRS. JUSTICE ANUBHA RAWAT CHOUDHARY

For the Appellants	: Mr. Rahul Kumar Gupta, Advocate
	: Mr. Rakesh Kumar Singh, Advocate
	: Ms. Swati Singh, Advocate
	: Mr. Surya Prakash, Advocate
For contesting Respondents	: Mr. S.K. Sharma, Advocate
	: Mr. Sumit Kumar, Advocate

Reserved on 20.06.2025

Pronounced on 25.11.2025

1. S.A. No. 393 of 2016 is relating to ***schedule B property*** of the plaint and S.A. No. 402 of 2016 is relating to ***schedule C property*** of the plaint. These appeals arise from the judgment dated 07.08.2014 (decree signed on 20.08.2014) passed by learned Civil Judge, Junior Division, (Munsif), Hazaribag in Partition Suit No. 97 of 2005.

2. ***S.A. No. 393 of 2016*** has been filed against the judgment dated 06.06.2016 (decree signed on 18.06.2016) passed in Title Appeal No. 45 of 2014 by the Court of learned District Judge-I, Ramgarh whereby the learned 1st appellate court has dismissed the appeal filed by the defendants. The learned trial court had partly decreed the suit for partition only with respect to schedule B property and the learned 1st appellate court, upon appeal filed by the defendants with respect to ***Schedule B*** property, has dismissed the appeal.

S.A. No. 402 of 2016 has also been filed by the defendants against that part of the judgment dated 06.06.2016 in Title Appeal No. 45 of 2014 whereby the learned 1st appellate court has been pleased to allow the cross-appeal filed by the plaintiffs with respect to ***Schedule C*** property.

3. The schedule B property is relating to certain plots in Khata no. 26 and 28 in village Bujurg Zamira, P.S. Patratu District Hazaribagh

(now Ramgarh). The schedule C property is in relation with certain plots in khata nos. 25, 27, 113 and 114 of the same village.

4. Vide order dated 30.09.2021 passed in both the cases, following substantial question of law was framed: -

(i) Whether the first appellate court has committed illegality in reversing the findings of the trial court in respect of issue no. 9 without discussing and giving reasons as to why first appellate court is reversing the aforesaid finding?

5. The issue no. IX was relating to schedule C property.

6. Vide order dated 31.03.2022 passed in S.A No. 393 of 2016 the following substantial question of law has been framed: -

(ii) Whether the courts below have misconstrued Section 18 of the Hindu Succession Act while dealing with Law of Succession regarding inheritance of the property of Gurdu Gope?

7. The Partition Suit was filed by three plaintiffs, namely, Rama Gope @ Rima Gope, Lato Gope @ Latlaha Gope and Binu Gope @ Bindeshwar Gope, all sons of Late Bhola Gope for the following reliefs:

(a) That after adjudication, a decree may be passed that the lands of schedule 'C' of the parties irrespective of Khatian entries in the individual names of co-parceners;

(b) That thereafter, a preliminary decree for the half share of the plaintiffs with respect to the lands of the suit khata as detailed in Schedule 'B' & 'C' below be passed and a separate Takhta be carved out with respect to the plaintiffs' half share by appointment of a Pleader Commissioner and the plaintiffs are put in khas possession of the same by evicting the defendants or any person claiming through them through the process of the court;

(c) That a decree for cost of the suit be passed including the pendency of the suit and further till possession of the plaintiffs' Takhta is not delivered;

(d) That any other relief or reliefs to which the plaintiffs will be entitled to claim.

8. Thus, the relief as prayed for, reveals that the plaintiffs sought a declaration that schedule-C property was a coparcenary property. They further prayed for a preliminary decree for half share of the plaintiffs with respect to schedule-B and C property and also sought Khas possession of the same by evicting the defendants or any person claiming under the defendants.

9. *Arguments of the appellants (defendants)* as reordered in the earlier orders passed by this court are as under: -

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- a) With respect to the substantial question of law regarding appreciation of provision of Section 18 of the ***Hindu Succession Act, 1956 (Hereinafter referred to as the Act of 1956)***, the learned counsel for the appellants has submitted that it is not in dispute that the property in Schedule-B was acquired by Gudru Gope and he had two wives; first wife had three children including Girdhari Gope, the remaining two died issueless. So far as second wife is concerned, she had only one child namely Bhola Gope.
- b) Bhola Gope, son of second wife, had four sons and one of the sons died issueless. The remaining three children of Bhola Gope were the plaintiffs. The legal heirs and successor of Girdhari Gope were the defendants. The court has directed partition of the suit property in the ratio of $\frac{1}{2}$ and $\frac{1}{2}$ share between the two branches, Girdhari Gope and Bhola Gope.
- c) The learned counsel has submitted that upon death of Gudru Gope, the property devolved equally amongst four sons of Gudru Gope and upon death of two full brothers of Girdhari Gope, the share of the deceased brothers would devolve upon the branch of Girdhari Gope and consequently the property

ought to have been divided in the ratio of $\frac{3}{4}$: $\frac{1}{4}$ with respect to the branch of Girdhari Gope and Bhola Gope but the learned court has wrongly divided the share $\frac{1}{2}$ and $\frac{1}{2}$ between two branches.

- d) While referring to Section 18 of the aforesaid Act of 1956, the learned counsel has submitted that heirs related to an intestate by full blood are to be preferred as compared to the heirs related by half blood. The learned counsel has also referred to the book ***Mulla on Hindu Law 21st Edition*** at page no. 149 to submit that the law that whole blood would be preferred to half blood was already in existence prior to coming into force of the Act of 1956 and such provision under Section 18 is basically codifying the existing law with respect to this aspect of the matter and he submits that the impugned judgment dividing $\frac{1}{2}$ and $\frac{1}{2}$ share between the branch of Girdhari Gope and Bhola Gope is not in accordance with law. He submits that the division of share ought to have been in the ratio of $\frac{3}{4}$ th and $\frac{1}{4}$ th.
- e) The learned counsel has also referred to page 133 of the same book which deals with propinquity being the governing factor under Mitakshara law and he submits that it has been stated therein that right to inheritance arises from propinquity that is '*proximity of relationship*'. He submits that proximity of relationship with respect to full brother would be closer as compared to half-blood brother and therefore upon death of full brothers their share would have devolved upon full blood brother and not upon half-blood brother.
- f) The learned counsel submits that once the unity of title and possession was found in connection with Schedule-B property, the properties ought to have devolved in accordance with the Act of 1956 and while giving the findings the learned Trial Court has completely ignored Section 18 of the Act of 1956.

- g) The learned counsel has referred to the issues framed by the learned Trial Court and has submitted that share with respect to the schedule-B and Schedule-C property comes under **issue no. X**.
- h) The learned counsel further submitted that it was held that there was unity of title and possession with respect to schedule-B property. While considering issue no. X, the learned court has recorded that the defendants have claimed that they had $\frac{2}{3}$ rd share and such claim was on the basis of **compromise decree** but such plea was ultimately rejected and by referring to certain pleading in the earlier proceedings wherein it was asserted that Girdhari Gope and Bhola Gope had $\frac{1}{2}$ and $\frac{1}{2}$ share in the land, the share was accepted to be $\frac{1}{2}$ and $\frac{1}{2}$. The learned counsel has submitted that *on the one hand* the claim of $\frac{2}{3}$ rd share of Girdhari Gope and $\frac{1}{3}$ rd share of Bhola Gope on the basis of compromise was rejected and *on the other hand*, the pleadings in the earlier partition suit was taken into consideration to give $\frac{1}{2}$ and $\frac{1}{2}$ share.
- i) While referring to the judgment passed by the learned 1st Appellate Court, the learned counsel has referred to paragraph 11 which records that the whole argument of both the parties hinges upon findings with respect to issue nos. VIII, IX and X. He submits that arguments of the defendants have been recorded in paragraph 12 of the judgment wherein the argument with respect to Section 18 of the Act of 1956 has been recorded in paragraph 12(4), 12(5) and 12(6) which are as follows:-

“(4) That in the suit for partition, the Court shall have to determine the share of parties and according to Section 18 of the Hindu Succession Act, heirs related to an intestate by full blood shall be preferred to heirs related by half blood.

(5) That as per Hindu Succession Act and Mulla's Hindu Law, two persons are related to

each other by full blood when they are descendants from common ancestor by the same wife and by half-blood when they are descendants from common ancestor by two different wives.

(6) That Girdhari Gope being related by full blood succeeded share of Bhodhu Gope and Mithu Gope and he became owner of 3/4th share and Bhola Gope became owner of 1/4th share.”

- j) The learned counsel further submitted that argument of the plaintiffs has also been recorded in paragraph 13 of the appellate court’s judgment but no specific argument with regard to Section 18 of the Act of 1956 has been mentioned. The learned counsel has further referred to paragraph 22 of the 1st Appellate Court’s judgment by which the learned 1st Appellate Court has mentioned about the claim with regard to share of full blood/half-blood but he submits that in the findings from paragraph 23 to 28 there is no discussion about the applicability of Section 18 of the Act of 1956. Paragraphs 21 to 24 are quoted as under: -

“21. From going through the documentary oral evidence, I find that there is no proof of any partition between the Girdhari Gope and Bhola Gope.

22. Now the question arises whether Girdhari Gope was entitled for 3/4 share of the properties left by his father as per the doctrine of full blood and half blood, and Section 4 of the Hindu Succession Act is overriding effect on the Section 84 of the C.N.T Act and the Principal of Estoppel or admission as mentioned in para-3 of the Ext. 5 is against the provision of statute.

23. The date, month or year of the death of Gudru Gope, Bodhu Gope and Mithu Gope as well as the wives of Gudru Gope has not been stated by any witness neither any document or substantive oral evidence has been brought. I am in agreement with the submission of the

learned counsel of the respondent that share of a coparceners in the co-parcenary properties increases or decreases as per the variation in the family members. The counsel of appellant-defendant has stated that it is mentioned in the pleading as well as in the evidence that Gudru Gope in his lifetime divided his property in three equal share and one Jethan share was allotted to Girdhari Gope and 2/3rd share Girdhari Gope and his brothers born from the first wife and 1/3 to Bhola Gope 24. There is no any documentary and oral evidence to prove para-13 of the Written Statement. Although this fact has been stated by DW-1 in his affidavit-in-chief. DW-4 Mansa Gope is a elderly man of village Bujurgjamira and he has stated that only two persons were allotted Jethans in his village namely Biglara and Namrata. He did not take name of Girdhari Gope and the second thing to be considered that if the Gudru Gope divided his property in three equal shares and one share was given to Girdhari Gope as Jethans and 2/3 of Girdhari Gope and his brother and one share to Bhola Gope, it is arithmetically wrong If whole property is divided into three equal share and one share was given to Girdhari Gope as jethans, then only 1/3rd share can be given to Girdhari Gope and his brother. Although, there is no evidence to prove the same. The defendant-appellant has relied upon the final Decree of Partition Suit No. 25/1938. However, from going through the documentary evidence, I find that the Court of Munsif has held that the suit was not compromised and not filed by Bhola Gope and the prayer for drawing final decree with respect to the partition Suit No. 25/1938 has not been allowed even by the Hon'ble Court. Hence, the Partition Suit No. 25/1938 could not be a basis of partition and the share of parties cannot be decided; since final decree has not been drawn neither

'dakhaldahani' has been effected. The learned lawyer of the appellant submitted that Ext. E series, the most vital documents of previous partition and these documents has been overlooked by the lower Court to consider the pleading of partition between the parties. I compared the lands sold by parties by Ext. E series are in consonance of their kabjabari for the Khatiyani vide Ext. 1 series. I find that the heirs of Girdhari Gope and Bhola Gope sold of only those lands pertaining to Khata no. 26, 28 and 113 which are mentioned as kabzawari against their name in the Khatiyani. The judgment reported in 1995 got into JLJR 1192 and vide para 22 of the judgment the effect of kabjabari(kabjadari) has been mentioned. I would like to mention only one line of the judgment as far as kabjadari is concerned "Kabjadari does not indicate partition through metes and bounds" In the case in hand, the partition cannot presumed since separate kabjabari has been mentioned in the Khatiyani as well as there has been interse transaction between the parties about the suit land. The learned lawyer of the appellant further raised matter of doctrine of merger. The principal of merger does not apply in this case since the judgment and order of the second appeal has not been brought on the record. Further, I find that Title Suit No. 148/1970 has been dismissed on merit and there is no any modified or reverse judgment of Appellate Court. Therefore, the principal of merger is not going to help the appellant anymore.

Therefore, I find that the lands pertaining to Khata no. 26 and 28 which are included in Schedule B of the plaint has not been partitioned by metes and bounds. Therefore, Girdhari Gope and Bhola Gope are entitled equal half share to the lands of Schedule B' property

Therefore, the finding of the lower Court as far as Schedule 'B' property is concerned stands upheld.”

- k) The learned counsel further submitted that once the genealogy is not in dispute the nature of relationship is also not in dispute. The date, month or year of death of Gudru Gope, Bhondu Gope and Mithu Gope as well as wives of Gudru Gope has not been brought on record. Upon applying Section 18 of the Act of 1956, the property ought to have devolved in the ratio of 3/4: 1/4.
- l) The learned counsel has relied upon a full Bench judgment of Hon’ble Bombay High Court reported in **1983 SCC Online Bombay 304 (Waman Govind Shindore v. Gopal Baburao Chakradeo)** and has referred to paragraph 13 thereof to submit that it has been clearly held that plain reading of provision of Section 18 of the Act of 1956 appears to be clear that it is nothing but a substantial reproduction of the prevalent rule of Hindu Law under which the relations of the whole blood were preferred to those of half-blood if their degree of relationship to the deceased was the same. The learned counsel has submitted that the aforesaid finding of Hon’ble Bombay High Court finds support from the aforesaid discussions made in Mulla Hindu Law. The learned counsel has also referred to the judgment passed by the Hon’ble Calcutta High Court reported in **1982 SCC Online Cal 218 (Ujjal Kumar Singh and others Vs. Lakshman Chandra Singh and others)**.
- m) The learned counsel has submitted that Gudru Gope died leaving behind his four sons and upon his death, the property equally devolved upon each one of them and upon death of two of them who were full brothers of Girdhari Gope, their share would have gone to the share of Girdhari Gope and the fourth son through the second wife could not claim any further property.

- n) The name of common ancestor of the parties was Gudru Gope, whose date of death has not been placed on record. He had two wives; termed as first wife and second wife. However, their dates of death have also not been placed on record. There is no finding that the children born out of wife termed as second wife were illegitimate children. It is not in dispute that two sons of first wife had expired but the dates of death of two sons of the first wife are also not available on record.
- o) It is not in dispute that the property was acquired by Gudru Gope and upon his death, it became ancestral property. The story of previous partition has been denied by the learned court and such finding has attained finality as no substantial question of law has been framed concerning previous partition. Though the date of death of aforesaid two sons of Gudru Gope has not come on record but it stood admitted from the side of the plaintiffs that two sons of Gudru Gope expired after the death of Gudru Gope.
- p) The property of Gudru Gope was self-acquired by him. Upon his death, it became the ancestral property of all his sons but still it did not constitute a coparcenary property as his sons did not constitute a coparcenary qua the property. He has submitted that the first generation does not form a coparcenary. It is the second with third generation which would form the coparcenary with respect to the property of the first generation inherited by the second generation as ancestral property.
- q) The core arguments of the appellants are that the property involved in this case was the self-acquired property of Gudru Gope and upon his death, it devolved upon all the four brothers but the four brothers got the property as ancestral property and not as coparcenary property as the four brothers did not constitute a coparcenary qua the self-acquired property of Gudru Gope. He has also submitted that had the

brothers had further children then the portion of the property which would devolve upon one or the other brother would constitute a coparcenary property with his sons. He has also submitted that Hindu coparcenary is narrower than the joint Hindu family and ancestral property is just a species of coparcenary property. He has referred to Clause 210, 211 and 212 of ***Mulla on Hindu Law 21st Edition***.

- r) The learned counsel for the appellants has submitted that upon death of Gudru Gope, the four sons did not constitute a coparcenary qua the self-acquired property of Gudru Gope, although upon his death, the property constituted ancestral property; further upon death of two sons, the property would not devolve by survivorship but would devolve upon full brother and not half-brother by succession referable to Section 18 of the Act of 1956.
- s) The finding of the learned 1st appellate court is that because all the four brothers constitute coparcenary therefore the property would devolve by survivorship and not by succession. He submits that the four brothers did not constitute coparcenary qua the self-acquired property of Gudru Gope and therefore the property would devolve by succession and not by survivorship.

10. Arguments of the contesting respondents (plaintiffs) are as under: -

- i. The learned counsel for ***the respondents*** submits that the perusal of the plaint reveals that the 2nd and 3rd generation of Gudru Gope were seeking partition of property which was self-acquired by Gudru Gope. He submits that even if the arguments of the appellants are accepted then also the property was coparcenary property at the hand of 2nd and 3rd generation of Gudru Gope.
- ii. The suit seeking partition having been filed by the 3rd generation, the suit property in any way was coparcenary property in their hand and therefore the property would have

devolved through survivorship; since two brothers had expired therefore the property devolved half and half between Girdhari Gope and Bhola Gope.

- iii. Section 18 of the Act of 1956 has no applicability as all the four brothers, who were sons of Gudru Gope, stood on equal footing and two of them died issueless. The plaintiffs and defendants do not stand in the same category and the level of their generation is different. For the applicability of Section 18, the relationship should be at the same level which is not applicable in the present case. He has relied upon a judgment passed by the Hon'ble Patna High Court reported in **2006 AIR Patna 169 (Ram Singari Devi and Ors. Vs. Govind Thakur and Ors.)**.
- iv. In order to explain the concept of coparcenary, the learned counsel has relied upon the judgment passed by the Hon'ble Supreme Court reported in **(2016) 4 SCC 68 (Uttam versus Saubhag Singh and Others)**.
- v. In the absence of date of death of concerned family members, the right over the property in the hand of one or the other family members of the joint family did not crystalize as a coparcenary property.
- vi. The learned counsel for the respondents has submitted that so far as Schedule-B property is concerned, it consists of Khata No. 26 and 28 and the Khatiyani in Khata No. 26 reveals that it was shown in the name of Girdhari Gope on one part and in the name of Ram Gope son of Binu Gope and grandson of Bhola Gope on 2nd part. However, so far as Khata No. 28 is concerned, from the Khatiyani there is no separate bifurcation with respect to the shares. The learned counsel submits that the record of rights was challenged by the appellants but they did not succeed and accordingly the half and half share of Girdhari Gope on one hand and branch of Bhola Gope on another has been rightly done.
- vii. The learned counsel for the respondents has also referred to Exhibit-4 to submit that the Award was also prepared upon

acquisition of land in case No. 16 of 1987-88 as back as in the year 1989 on the basis of compromise and it was prepared half and half. However, upon perusal of the said document he has not been able to point out as to which plot number it was relating as there is no mention of any Khata number on the same. The joint compromise has also not been brought on record. The learned counsel has submitted that the dispute in connection with compensation is pending before this court as per the order passed by the learned 1st Appellate Court.

- viii. The learned counsel for the respondents has referred to Hindu Law by Mulla 20th Edition 1st Volume page no. 360. The learned counsel while referring to the aforesaid page has referred to Article 212 dealing with formation of coparcenary and has submitted that conception of a joint Hindu Family constituting a coparcenary is that of a common male ancestor with his lineal descendants in the male line within four degrees counting from and inclusive of such ancestor (or three degree exclusive of the ancestor). No coparcenary can commence without a common male ancestor, though after his death, it may consist of collaterals such as brothers, uncles, nephew, cousins etc. The learned counsel while referring to this has submitted that all the four sons of Gudru Gope, constituted coparcenary. He has relied upon a judgment passed by the Hon'ble Supreme Court reported in **(2020) 9 SCC 1 (Vinita Sharma versus Rakesh Sharma)** and has referred to paragraph no. 66, 69, 73 and 129 of the said judgment to submit that coparcenary continues till there is actual partition. Therefore, the learned court has rightly held that property was coparcenary property.

11. Rejoinder arguments of the appellants.

The learned counsel for the **appellants in response** has submitted that as per Hindu Law, upon the death of a Hindu, the devolution of the property takes place immediately irrespective of actual partition. He submits that upon death of Gudru Gope, it devolved equally upon all the four sons (three from 1st wife and one from 2nd wife) and upon

death of two full brothers of Girdhari Gope, the two sons of 1st wife, the share of two deceased full brothers would devolve only upon Girdhari Gope being related by full blood and accordingly the share of Girdhari Gope would be 3/4th. The remaining 1/4th share will go to the only son of 2nd wife, namely, Bhola Gope. The learned counsel for the appellants has submitted that the property of Gudru Gope is self-acquired and his next generation would not constitute coparceners amongst themselves. He submits that each of the brothers who were sons of Gudru Gope would constitute separate coparcener with respect to the property as and when the 3rd generation is born. In order to form coparcenary qua the property there has to be a coparcenary and also coparcenary property. The learned counsel submits that the brothers/sons of Gudru Gope did not acquire the property as coparcenary property and therefore each branch of four sons along with their descendants formed separate coparcenary with respect to coparcenary property acquired by their respective father.

Second Appeal No. 402 of 2016

12. Arguments of the appellants (defendants)

The learned counsel for the appellants submits that this 2nd appeal relates to Schedule-C property. He has referred to issue no. (IX) decided by the learned Trial Court and has submitted that it has been held that merely because there was a joint family, that does not mean that the property was joint family property. He has also submitted that the property under Khata No. 25 and 27 on the one hand and 113 and 114 on the other hand were recorded in the name of Girdhari Gope and Bhola Gope respectively and such entry in the record of rights was never challenged. The entry has attained finality and the respondents never challenged the separate entry with respect to the concerned properties. The learned counsel has submitted that nucleus to acquire the property was never proved and consequently the property was rightly held to be the self-acquired property of Girdhari Gope and Bhola Gope respectively and was kept out of partition holding that there was no unity of title and possession between the parties with respect to Schedule-C property in the plaint.

13. He submits that such finding has been reversed by the learned 1st Appellate Court in the Cross Appeal and in the 1st appellate court's judgment there is no finding with respect to the nucleus to acquire the property.

14. The learned counsel has submitted that the case has been decided primarily based on pleadings of the respective parties and not on the basis of evidences adduced before the court. The learned counsel has submitted that in order to claim that the property was joint family property, the nucleus was required to be proved by the person who claimed that it was a joint family property. Nucleus having not been proved and the property duly recorded in the record of rights, the property was self-acquired property of the respective parties. He submits that the judgment passed by the learned 1st Appellate Court is fit to be set aside. He has relied upon the judgment passed by the Hon'ble Supreme Court reported in **(2003) 10 SCC 310 (D.S. Lakshmaiah and another)** paragraph 17 and 18 on the point of onus/burden of proof with regard to joint family property.

15. **Arguments of the contesting respondents (plaintiffs) in Second Appeal No. 402 of 2016.**

The learned counsel for the respondents has submitted that illegality in the finding recorded by the learned courts by itself is not the substantial question of law. Only in case of perversity, the findings can be a subject matter of substantial question of law. Both the learned courts found that Schedule-B and C property were coparcenary property.

16. The learned counsel for the respondents has referred to the judgment passed by the Hon'ble Supreme Court reported in **(2003) 10 SCC 310 (Supra)** which has also been relied upon by the learned counsel for the appellants and has submitted that though there is no presumption that the property is a joint family property merely because there is an existence of joint family, but once the nucleus is proved from which the joint family property could be acquired, the onus shifted upon the appellants to plead and prove the source of income from which they acquired the schedule-C property. The

learned counsel submits that there is finding of the learned courts that there is nucleus in the family.

17. The learned counsel for the respondents has submitted that the learned 1st appellate Court has considered not only the pleadings of the parties but also the evidence on record and has passed a reasoned judgment. There is no occasion for this court to enter into a finding of fact. He has relied upon judgement reported in **1994 AIR AP 134 [Jupudi Venkata Vijaya Bhaskar -Vs- Jupudi Kesava Rao (died)], (para 30)**, to submit that in the said judgement a reference has been made to the earlier judgement of the Hon'ble Supreme Court where it has been held that separate property of a member of joint Hindu family may be impressed with the character of joint family property if it is voluntarily thrown into the common stock with the intention of abandoning separate claim therein.

Rejoinder arguments of the appellants in S.A No. 402 of 2016

18. It was the specific case in the plaint that two brothers got property in their own name but at the same time it was pleaded that the property was acquired from joint family fund. The learned counsel submits that not only the existence of nucleus but also the sufficiency of nucleus is required to be proved as the income generated from the joint family property or joint family fund should be enough to sustain the acquisition of the property which is claimed to be joint family property in spite of standing in the name of Hindu nuclear family. He has again referred to the judgement passed by the Hon'ble Supreme Court reported in **(2003) 10 SCC 310** and has referred to the earlier judgments referred to by the Hon'ble Supreme Court at paragraph 10, 11 and 13 to submit that mere existence of nucleus is not sufficient; adequacy of nucleus is also required to be proved. He has also referred to paragraph 5 of the plaint.

The plaint

19. Case of the plaintiffs as per the plaint is as under: -

- I. It was the case of the plaintiffs that upon death of the common ancestor, Gudru Gope, his sons jointly inherited the land in Khata

No. 7 which became their ancestral joint family property in the hand of Girdhari Gope and his brothers (from 1st wife) and Bhola Gope (from 2nd wife) – each were having equal share. It was their case that they were governed by Mitakshara School of Hindu Law and the joint family property was never partitioned by metes and bounds *either* between the sons of Gudru Gope *or* amongst Girdhari Gope and sons of Bhola Gope and it was asserted that they were jointly cultivating the property as per convenience. After death of Bhondru Gope and Mithu Gope, Girdhari Gope and Bhola Gope both became owners of 8 annas share each (50% each). It was claimed by the plaintiffs (descendants through the 2nd wife) that the defendants (descendants through the 1st wife) would be entitled only up to the extent of 50% of the property of Gudru Gope.

- II. Their further case was that after the last cadastral survey both Girdhari Gope and Bhola Gope jointly and out of joint family fund, i.e., income from land of old Khata No. 7 acquired some more land by settlement from the then ex-landlord in their own names, which having acquired out of the lands of coparcenary property, became part of the joint family property. Later on, there was a minor revisional survey in the village during the lifetime of Girdhari Gope and Bhola Gope and Girdhari Gope being the Karta of the joint family was looking after the survey proceedings which started in the year 1962-63. The record of rights was finally published in the year 1967 in which new Khata No. 26 and 28 was carved out from the old ancestral Khata No. 7 and the same was jointly recorded in the name of Girdhari Gope (one share) and three sons of Bhola Gope except Basudeo Gope [died prior to minor survey] having one share. In the column 2 of new Khata Nos. 26 and 28, the share of Girdhari Gope was entered as one share and the share of the plaintiffs as one share, but *Kabajwari* of the plots as per the then possession was noted in the last or the remark column of the Khatiyans. The lands which were jointly acquired by Girdhari Gope and Bhola Gope from the joint family income was incorrectly recorded in the name of

Girdhari Gope separately against new Khata Nos. 25 and 27 and for lesser areas, it was incorrectly and separately recorded in the name of Bhola Gope against new Khata Nos. 113 and 114, though both were joint owners having equal share.

- III. It was further alleged that Girdhari Gope was looking after the revisional survey being the Karta of the family and personally he had no objection to the entries made pursuant to the revisional survey nor did he press before the authorities the alleged compromise decree passed in Partition Suit No. 25 of 1938 nor did he file any objection and thereby allowed the Khatiyan entries to become conclusive, final and binding upon the parties. The alleged compromise decree was either non-existent or not acted upon or given effect to.
- IV. The ancestral land which was recorded under new Khata No. 26 and 28 were described in schedule-B and the land which was subsequently acquired from joint family fund was recorded in Khata Nos. 25, 27, 113 and 114 and is described in schedule-C. It was asserted that the land of schedule-C was all coparcenary property being acquired from joint family funds and therefore, the Khatiyan entries were wrong and the plaintiffs had half share with respect to the schedule- C property.
- V. It was their further case that the parties were still joint and there has never been any partition by metes and bounds amongst them or amongst their ancestors and the rents were being paid jointly except with respect to the Khata Nos. 27, 28 and 114 which were 'Belagan' land as entered in the Khatiyan of revisional survey of 1967; meaning thereby, no rent was payable with respect to those properties.
- VI. Further case of the plaintiffs was that Bodhan Gope, S/o Girdhari Gope, prior to his death, had instituted Title Suit No. 148 of 1970 and the present plaintiffs were defendant nos. 1 to 3 in the said suit whereas, three brothers of Bodhan Gope were defendant nos. 4 to 6 in the said suit. In Title Suit No. 148 of 1970, Bodhan Gope sought a declaration of his title along with his three brothers over land comprising of certain plots under Khata No. 26 and 28.

The claim was based on the alleged compromise decree of Partition Suit No. 25 of 1938 in which compromise petition was said to have been filed on 08.02.1939 by Bhola Gope (father of the plaintiffs). Further, a declaration was also sought in the said suit to declare that the survey showing the name of the present plaintiffs who were defendant nos. 1 to 3 in the Title Suit No. 148 of 1970 in the *purcha* prepared and published with respect to the suit land of that suit, was wrong.

- VII. It was also asserted that the plaintiffs of the previous suit admitted that the Khata Nos. 26 and 28 in the survey of 1967 was carved out of old khata no. 7 recorded in the name of common ancestor Gudru Gope and they also admitted that Girdhari Gope and Bhola Gope, each had equal half share in the lands of Khata No. 7 and also admitted equal share of the plaintiffs of the present suit on one side and the heirs of Girdhari Gope on the other side.
- VIII. The plaintiffs pleaded that the Title Suit No. 148 of 1970 was based on the compromise petition of the earlier Partition Suit No. 25 of 1938 in which compromise petition was alleged to have been filed by Bhola Gope against Girdhari Gope and other co-sharers whereby the suit lands, besides others, total 22 to 23 acres were allotted to Girdhari Gope and only 7 acres was allotted to Bhola Gope.
- IX. It was asserted that the defendant nos. 1 to 3 of Title Suit No. 148 of 1970, who are the plaintiffs in the present suit, contested the said suit by stating that Bhola Gope never filed the alleged Partition Suit No. 25 of 1938 nor there was any compromise decree on the basis of alleged compromise petition and that the suit lands of Title Suit No. 148 of 1970, besides others, were never allotted to Girdhari Gope. It was asserted that the said partition suit no. 25 of 1938 and its alleged compromise petition and the decree were manipulated, concocted, fabricated and not binding upon the present plaintiffs.
- X. In the Title Suit No. 148 of 1970, it was held, *inter alia*, that compromise in the earlier suit being Partition Suit No. 25 of 1938 was not arrived in the suit and the same was not acted upon and

that the entry in the survey records-of-rights with respect to the suit land was not wrong or incorrect and accordingly, the suit was dismissed vide judgment dated 09.12.1971.

- XI. Against the judgment passed in Title Suit No. 148 of 1970, the plaintiff of the said case namely Bodhan Gope filed F.A. No. 8 of 1972 which too was dismissed on 08.01.1975 by confirming the judgment of the trial court and holding that the alleged compromise was not signed by Bhola on behalf of his minor sons.
- XII. Thereafter, 2nd appeal was filed before the High Court, but the order and direction of the High Court was not complied nor any steps were taken on behalf of the said appellants and the appeal before the 1st appellate court was dismissed by an order dated 21.12.1982.
- XIII. It was asserted that the final decision of Title Suit No. 148 of 1970 dated 21.12.1982 proved that there was never any partition of the land of the suit Khatas which were coparcenary properties and the judgment in Title Suit No. 148 of 1970 became final, conclusive and binding upon the parties.
- XIV. It was their further case that defendant nos. 4 and 5 filed Title Suit No. 59 of 2004 on 03.08.2004 falsely stating that recorded tenants in survey of 1967 never constituted a joint family and Kabzawadi entries in the suit khata no. 26 were according to their individual rights and there was no unity of possession. It was also asserted in Title Suit No. 59 of 2004 that Doman Gope [died issueless] made a gift of his share to the said plaintiffs i.e., plaintiffs of Title Suit No. 59 of 2004 and delivered possession. The gift was alleged to be illegal and invalid by the present plaintiffs.
- XV. Further, the plaintiffs of Title Suit No. 59 of 2004 alleged to have sold some land [out of schedule -B of the plaint of this suit] but the alleged purchasers did not acquire any right except to claim partition from the share of the plaintiffs. The plaintiffs of the present suit contested the said suit being Title Suit No. 59 of 2004 and ultimately, an order dated 10.02.2005 was passed holding

that the alleged compromise petition was not acceptable and the objection of the present plaintiffs was allowed.

- XVI. It was also asserted that in one Land Acquisition case certain properties in Khata No. 26 were acquired for military purpose for which compensation was awarded and paid. In the said case, the half of the amount of total compensation was paid to the plaintiffs. For the purpose of enhancement of the awarded amount, the case was pending in appeal before the High Court and therefore, the properties which were acquired did not form a part of schedule-B property seeking partition.
- XVII. It was asserted that in view of aforesaid series of litigations and various tactics of defendants and their ancestors at various stages of litigation to grab more land, the plaintiffs were advised to file the suit seeking partition of $\frac{1}{2}$ share which was refused by the defendants on 05.08.2005.

The written statement

20. Case of the defendants as per the written statement is as under: -

- A. The genealogy appended at Schedule-A of the Plaint is neither correct nor complete. A dispute was raised with respect to the name of the family members and it was stated that Bhola Gope had died first among the brothers leaving behind three sons, Plaintiff no.1, 2 and 3. Basudeo, son of Bhola Gope had predeceased issueless. Bhondur Gope and Mithu Gope [both full brothers of Girdhari Gope] also died issueless one after another.
- B. The common ancestor, Gudru Gope, during his lifetime, divided the properties in equal three shares. One Jethans share to Girdhari Gope was allotted and $\frac{2}{3}$ rd share to three brothers i.e., Girdhari Gope, Bhondur Gope, and Mithu Gope - sons through the 1st wife and $\frac{1}{3}$ rd share to Bhola Gope son through the 2nd wife was allotted and they continued in possession accordingly. Three brothers Girdhari, Bhondur and Mithu lived in reunion while Bhola lived in Separation.

- C. After death of the common ancestor, Bhola created nuisance and then *Panches* were called on *Jyeth Sudi 14 Sambat 1975* to resolve the dispute and they amicably resettled on the same right as per partition held amongst them and prepared a memorandum of the same in two copies –one each to two sets. After death of Mithu Gope and Bhondu Gope, the Sole surviving brother Girdhari succeeded them. It was admitted that the shares of the two-brothers (died issueless) devolved upon Girdhari Gope, but it was disputed that Girdhari became sharer to the extent of Eight annas (50%) and Bhola became sharer of Eight annas (50%).
- D. It was denied that after death of Gudru Gope, the lands of Khata no.7 were the joint family property in the hands of Girdhari Gope and Bhola Gope each having equal $\frac{1}{2}$ share. It was stated that the joint family property was partitioned and the partition held among them was later on merged into the Decree of Partition Suit No. 25 of 1938.
- E. It was denied that after last cadastral survey both Girdhari and Bhola, out of the joint Income from Khata no.7, acquired some more lands by settlement from the ex-landlord in their own names which became part of joint family properties.
- F. In the Partition Suit No. 25 of 1938 brought by Bhola Gope, ancestor of the Plaintiffs, the lands allotted as per decree dated 25.02.1938 were in Khata No.7 in different plots having total area of 7.31 acres as detailed in the written statement.
- G. It was denied that Girdhari Gope was ever the Karta of the joint family and was ever looking after the survey proceeding which started in 1962-63 and finally published in 1967. It was asserted that the original plaintiffs were instrumental in managing wrong entry in the Revisional survey record. It has been wrongly entered in the Revisional Khatian that Girahari Gope had one share and one share to original plaintiffs who had no concern with those lands of Khata no. 26 and 28.

Taking advantage of the wrong entry the Plaintiffs tried to obtain Jamabandi in their names.

- H. The lands which were wrongly entered and transferred into new Khata and plots in Revisional Survey were detailed in para 19 of the written statement.
- I. Bodhan Gope, son of Girdhari Gope, the Ancestor of the defendants, lodged title suit no.148/1970 on 30/01/1970 and amongst others, prayed for declaration that the recent survey showing names in the Parcha and publication by survey authorities with respect to the above-mentioned land were wrong. The Title Appeal No. 8/72 / 18/74 on remand by the High Court in S.A. No. 2/1975(R) is yet to be decided on merit as per observation made by the High court. Present suit for this reason too is not maintainable.
- J. It is incorrect to say that Girdhari Gope, by looking after the minor survey proceeding, got larger share incorrectly recorded in his separate name under New Khata no.25 and 27 and for lesser area in the names of the ancestor of the Plaintiffs under new Khata no. 113 and 114. It was denied that both the Plaintiffs and defendants are joint owner having equal share. It is not correct to say that the compromise Decree of Partition Suit No. 25 of 1938 has not been given effect.
- K. It was denied that the lands of four Khatas i.e., Khata Nos. 25, 27, 113 and 114 (all under schedule C property) are coparcenary property and that they have been acquired out of joint family fund from schedule B property and accordingly they denied that the Plaintiffs have $\frac{1}{2}$ share in the lands of schedule 'C' of the Plaint. As a matter of fact, the plaintiffs and their ancestors have transferred the land, allotted to them through Partition Suit No. 25 of 1938 according to their Kabjawari allotment to different persons and to their wives and lady members of the family and the other lands of Khata Nos. 113 to 114 were recorded in their name.

- L. It was denied that the parties are still joint. It was denied that Girdhari Gope and Bhola Gope each had equal ½ share in the lands of old Khata no.7.

21. **Issues framed by the trial court :-**

- I. Is the suit is maintainable as framed?
- II. Whether the plaintiffs have cause of action for the suit?
- III. Is the suit barred by res-judicata?
- IV. Whether the suit is barred under the provisions of Specific Relief Act?
- V. Whether the suit has been properly valued and court fee paid is sufficient?
- VI. Whether the suit is barred by law of limitation and adverse possession?
- VII. Whether the suit is bad for non-joinder of necessary parties?
- VIII. Whether there is unity of title and possession between the parties as to the suit property?
- IX. Whether the Schedule 'C' properties of the plaint are coparcenary of the plaintiffs and defendants?
- X. Whether the plaintiffs are entitled to partition of half share in Schedule 'B' and 'C' of the plaint?
- XI. Whether the plaintiffs are entitled to a decree prayed for?
- XII. To what other reliefs if any the plaintiffs are entitled?

22. **Oral and documentary evidences:-**

Both the parties adduced oral as well as documentary evidences in support of their respective cases. The plaintiffs examined altogether four witnesses. Out of them, PW-1 was Lato Gope, PW-2 was Birja Gope, PW-3 was Rato Gope and PW-4 was Prem Gope. The defendants have examined altogether five witnesses. Out of them, DW-1 was Umesh Gope, DW-2 was Ganesh Prasad Yadav, DW-3 was Indu Gope, DW-4 was Mansa Gope and DW-5 was Devanand Gope.

List of documents filed on behalf of plaintiffs:-

Ext. 1 series	Certified copy of Records of Right of Cadastral Survey of khata no. 25, 26, 27, 28, 113 and 114 of village Bujurga-Zamira under Ramgarh thana, Dist. Hazaribag
Ext. 2	Certified copy of order dated 08.11.2011 passed by the High court of Jharkhand in W.P(C) No. 5948 of 2008.

Ext. 3	Endorsement of District Land Acquisition Officer, Hazaribagh made on the petition filed by Rama Gope and others before the court of District Land Acquisition Officer, Hazaribagh in Case No. P-16/87-88.
Ext. 4	Certified copy of order dated 05.01.1989, 07.01.1989, 17.01.1989 and 23.01.1989 passed by District Land Acquisition Officer, Hazaribagh in Case No. 16/87-88.
Ext. 4/A	Certified copy of order dated 10.02.2005 passed by the court of Munsif, Hazaribagh in Title Suit No. 59 of 2004.
Ext. 4/B	Certified copy of order dated 05.02.2009 passed by the court of Munsif, Hazaribagh in Title Suit No. 59 of 2004.
Ext. 4/C	Certified copy of order dated 21.01.2008 passed by the court of Munsif, Hazaribagh in Title Suit No. 25 of 1938.
Ext. 5	Certified copy of plaint of Title Suit No. 148 of 1970 filed before the court of Munsif, Hazaribagh by Bodhan Gope as plaintiff against Rima Gope and others as defendants.

List of Exhibits on behalf of Defendants:-

Ext. A series:- (Ext.A to A/3)	Government rent receipt issued in the name of Devanand Gope and Girdhari Gope in respect of lands of khata no. 25, 26, 27 and 28.
Ext. B	Certified copy of order-sheet from 22.02.1938 to 30.03.1984 passed in Partition Suit No. 25 of 1938 by the court of Munsif, Hazaribagh.
Ext. B/1	Certified copy of order-sheet dated 18.09.1981 to 21.12.1982 passed in Title Appeal No. 08 of 1972/02 of 1981 by the court of 1st Addl. Subordinate Judge, Hazaribagh.
Ext. B/2	Certified copy of order dated 17.07.2009 passed District Land Acquisition Officer, Hazaribagh in land acquisition case No. 5/03-04.
Ext. C	Certified copy of Judgement dated 09.12.1971 passed in Title Suit No. 148 of 1970 by the court of Munsif Hazaribagh.
Ext. C/1	Certified copy of Judgement dated 08.1.1975 passed in Title Appeal No. 8 of 1972/18 of 1974 by the court of 1 st , Addl. Subordinate Judge, Hazaribagh.
Ext.D	Certified copy of decree passed in Title Suit No. 148 of 1970 by the court of Munsif Hazaribagh.
Ext. D/1	Certified copy of decree passed in Title Appeal No. 8 of 1972/18 of 1974 by the court of 1 st Addl. Subordinate Judge, Hazaribagh.

Ext.D/2	Certified copy of Final decree passed in Partition Suit no. 25 of 1938 by the court of Munsif, Hazaribagh.
Ext. E	Certified copy of sale deed dated 18.04.1979 executed by Lato Gope, Ram Gope and Bineshwar Gope in favour of Budhani Devi.
Ext. E/1	Certified copy of sale deed dated 26.06.1990 executed by Lato Gope, Ram Gope and Binu Gope in favour of Atri Devi.
Ext. E/2	Certified copy of sale deed dated 26.06.1990 executed by Rama Gope, Lato Gope and Binu Gope in favour of Parni Devi.
Ext. E/3	Certified copy of sale deed dated 05.12.1992 executed by Doman Gope, in favour of Devanand Gope, Umesh Gope and Smt. Khema Devi.

23. **Findings of the learned trial court**

Issue No. VIII (Unity of title and possession-Schedule 'B' lands):

The learned trial court found no proof of partition between Girdhari Gope and Bhola Gope. The court noted that the Munsif in Title Suit No 148/1970 held that Partition Suit No. 25 of 1938 was not filed by Bhola Gope and no compromise was reached, and the prayer for a Final Decree in Partition Suit No. 25 of 1938 was not allowed even by the High Court. The plea of previous partition raised by the defendants by referring to Partition Suit No. 25 of 1938 and also memorandum of partition (which was not exhibited) was rejected. The Court also found that “Kabjadari” does not indicate partition through metes and bounds. It was recorded that the properties of Khata No. 26 & 28 were not partitioned by metes and bounds. The Trial court concluded that there is unity of title and possession for Khata No. 26 & 28 (Schedule 'B' lands).

Issue No. IX (Whether the Schedule 'C' properties are coparcenary properties)

With respect to issue no. IX dealing with schedule-C property, the learned trial court recorded a finding in paragraph 48 that the plaintiffs have not been able to prove by good evidence that the land described in schedule- C of the plaint was coparcenary/joint family property. Paragraph 48 of the trial court’s judgment is quoted as under:

“48. I find that except this statement of PW-1 there is no other evidence on the record to prove the facts that lands of khata no. 25, 27, 113 & 114 were acquired from the income of joint family. But PW-1 has not clarified that what was the income of the joint family, what was the expenses and what was the savings from which the lands of aforesaid khata were acquired. Though, there is evidence that the family possess about 30 acres of lands. But there is no evidence on the record to show that what was the extent of income and expenditure and what was the savings of the joint family, because only after expenses, the amount which is saved is called the “nucleus” of the joint family. I find that a bald statement has been made in this regard in the pleading as well as evidence of PW-1. There is no case of the plaintiffs that karta of the joint family had acquired the lands in the name of different family members of joint family rather it is admitted fact that lands were acquired by Girhari Gope and Bhola Gope. Only because the family is joint, there can be no presumption that the property which has been acquired by a member of the family will be joint family property even though it is recorded in the name of that particular family member. I find that the plaintiffs have not been able to prove by adducing good and convincing evidence that there was joint family nucleus from which the lands of khata no. 25, 27, 113 and 114 were acquired. I have stated above there is a bald statement that the property mentioned in schedule 'C' is joint family property. I also went through the record of rights of khata nos. 25 & 27 which have been recorded in the sole name of Girdhari Gope and khata no. 113 & 114 recorded in the sole name of Bhola Gope. There is no material to show that the plaintiffs have raised any objection before the revenue authority in respect of the aforesaid wrong entry in the record of rights. In such view of the matter, I find and hold that plaintiffs have not been able to prove by good evidence that lands described in schedule 'C' of the plaint are coparcenary/joint family property. I further find and hold that there is no unity of title and possession between the parties with respect to the lands described in schedule 'C' of the plaint and as such the aforesaid lands are not liable to be partitioned. Accordingly, issue no. IX is decided against the plaintiffs.”

Issue No. X (Whether the plaintiffs are entitled to ½ share in Schedule 'B' and 'C')

With respect to issue no. X, the learned trial court held that the plaintiffs are entitled to get $\frac{1}{2}$ share in the lands described in schedule 'B' of the plaint on partition. Whereas, lands described in schedule 'C' are not coparcenary/joint family property and not liable to be partitioned as claimed by the plaintiffs. The findings are quoted as under: -

“49. This issue relates to share of the plaintiffs in the suit property. In this regard, the case of the plaintiffs is that after death of Bondhu Gope and Mithu Gope rest two brothers namely Girdhari Gope and Bhola Gope each became owners of 8 annas share in the lands described in Schedule 'B' of the plaint. Whereas the case of the defendants is that the branch of Girdhari Gope has $\frac{2}{3}$ shares and branch of Bhola Gope has $\frac{1}{3}$ share in the suit property.

50. It is admitted fact that out of the four sons of Gudru Gope, two namely Bhondhu Gope and Mithu Gope died issue-less. According to the Hindu Law, their undivided interest in the coparcenary property devolved upon other coparcenars namely Girdhari Gope and Bhola Gope by survivorship. Even if, at the time of death Bhondhu Gope and Mithu Gope were separate their property passed to their heirs by succession. In that case also the share of Bondhu Gope and Mithu Gope devolved upon their other brothers namely Girdhari Gope and Bhola Gope who were their heirs. As such, I find that Girdhari Gope and Bhola Gope had half-half share in the lands of khata no.7 (new khata no. 26 & 28). I further find that ancestor of defendants namely Bodhan Gope has himself admitted in the previously instituted Title Suit No. 148 of 1970 that Girdhari Gope and Bhola Gope had half share in the lands of khata no. 7 which is described in Schedule 'B' of the plaint. The certified copy of plaint of Title Suit No. 148 of 1970 has been got exhibited on behalf of the plaintiffs and has been marked as Ext. 4/A. I find that the admission made in the plaint of Title Suit No. 148 of 1970 by Bodhan Gope supports the claim of plaintiffs of this case that they have half share in the joint family property. Moreover, the record of rights of khata no. 7 (new khata no. 26 & 28) also describe equal share of the Girdhari Gope and Bhola Gope in the lands of said Khata. In view of the above facts and circumstances, I find and hold that the plaintiffs are entitled to get half share in the lands described in schedule 'B' of the plaint on partition. Whereas, I have already decided that lands described in schedule 'C' are not

coparcenary/joint family property and not liable to be partitioned as claimed by the plaintiffs. Accordingly, issue no. X is decided and answered.”

Findings of the 1st appellate court.

24. On appeal filed by defendants with regards to schedule B properties for which partition was allowed $\frac{1}{2}$ and $\frac{1}{2}$ and cross appeal filed by the plaintiffs with regards to schedule C properties for which partition was declined, the learned 1st appellate court allowed the cross appeal of the plaintiffs and dismissed the appeal of the defendants and consequently both, schedule B and Schedule C properties were to be divided $\frac{1}{2}$ and $\frac{1}{2}$. The defendants also argued that if the partition is to be allowed then the share of the plaintiffs would be only $\frac{1}{4}$ th share of one son of the 2nd wife and that of the defendants would be $\frac{3}{4}$ th (share of three sons of the 1st wife) as the property would devolve equally amongst the four sons of Gudru Gope and upon death of two full brothers of Girdhari Gope, the property will only devolve upon Girdhari Gope being the full brother and not upon Bhola Gope. The 1st appellate court gave a concurrent finding that there is no proof of any partition between Girdhari Gope and Bhola Gope and the land in khata no. 26 and 28 have not been partitioned by metes and bounds and directed $\frac{1}{2}$ share to the plaintiffs and upheld the findings of the learned trial court with regards to schedule B property. The learned 1st appellate court recorded the question as to whether Girdhari Gope was entitled to $\frac{3}{4}$ th share of the schedule B property but did not give any finding and simply held that plaintiffs and defendants would be entitled to $\frac{1}{2}$ share each. No finding has been recorded as to whether the schedule B property was a coparcenary property or not although it was admittedly an ancestral property acquired by the common ancestor – Gudru Gope- the father of Girdhari Gope and also Bhola Gope. The schedule C property was held to be falling under joint family property, but not under coparcenary property, and was directed to be partitioned $\frac{1}{2}$ and $\frac{1}{2}$ between the plaintiffs and the defendants. The defendants are in appeal against rejection of their appeal and also against cross appeal allowed by the 1st appellate court. The findings relevant for the purposes of answering the substantial questions of law are as under: -

Paragraphs 21 to 24 of the appellate court's judgement are quoted as under:

21. From going through the documentary oral evidence, I find that there is no proof of any partition between the Girdhari Gope and Bhola Gope.

22. Now the question arises whether Girdhari Gope was entitled for 3/4th share of the properties left by his father as per the doctrine of full blood and half blood, and Section 4 of the Hindu Succession Act is overriding effect on the Section 84 of the C.N.T Act and the Principal of Estoppel or admission as mentioned in para-3 of the Ext. 5 is against the provision of statute.

23. The date, month or year of the death of Gudru Gope, Bodhu Gope and Mithu Gope as well as the wives of Gudru Gope has not been stated by any witness neither any document or substantive oral evidence has been brought. I am in agreement with the submission of the learned counsel of the respondent that share of a coparceners in the co-parcenary properties increases or decreases as per the variation in the family members. The counsel of appellant-defendant has stated that it is mentioned in the pleading as well as in the evidence that Gudru Gope in his lifetime divided his property in three equal share and one Jethan share was allotted to Girdhari Gope and 2/3rd share Girdhari Gope and his brothers born from the first wife and 1/3 to Bhola Gope.

24. There is no any documentary and oral evidence to prove para-13 of the Written Statement. Although this fact has been stated by DW-1 in his affidavit-in-chief. DW-4 Mansa Gope is a elderly man of village Bujurgjamira and he has stated that only two persons were allotted Jethans in his village namely Biglara and Namrata. He did not take name of Girdhari Gope and the second thing to be considered that if the Gudru Gope divided his property in three equal shares and one share was given to Girdhari Gope as Jethans and 2/3 of Girdhari Gope and his brother and one share to Bhola Gope, it is arithmetically wrong. If whole property is divided into three equal share and one share was given to Girdhari Gope as jethans, then only 1/3rd share can be given to Girdhari Gope and his brother. Although, there is no evidence to prove the same. The defendant-appellant has relied upon the final Decree of Partition Suit No. 25/1938. However, from going

through the documentary evidence, I find that the Court of Munsif has held that the suit was not compromised and not filed by Bhola Gope and the prayer for drawing final decree with respect to the partition Suit No. 25/1938 has not been allowed even by the Hon'ble Court. Hence, the Partition Suit No. 25/1938 could not be a basis of partition and the share of parties cannot be decided; since final decree has not been drawn neither 'dakhaldahani' has been effected. The learned lawyer of the appellant submitted that Ext. E series, the most vital documents of previous partition and these documents has been overlooked by the lower Court to consider the pleading of partition between the parties. I compared the lands sold by parties by Ext. E series are in consonance of their kabjabari for the Khatian vide Ext. 1 series. I find that the heirs of Girdhari Gope and Bhola Gope sold of only those lands pertaining to Khata no. 26, 28 and 113 which are mentioned as kabzawari against their name in the Khatian. The judgment reported in 1995 got into JLJR 1192 and vide para 22 of the judgment the effect of kabjabari(kabjadari) has been mentioned. I would like to mention only one line of the judgment as far as kabjadari is concerned "Kabjadari does not indicate partition through metes and bounds." In the case in hand, the partition cannot presumed since separate kabjabari has been mentioned in the Khatian as well as there has been inte-rse transaction between the parties about the suit land. The learned lawyer of the appellant further raised matter of doctrine of merger. The principal of merger does not apply in this case since the judgment and order of the second appeal has not been brought on the record. Further, I find that Title Suit No. 148/1970 has been dismissed on merit and there is no any modified or reverse judgment of Appellate Court. Therefore, the principal of merger is not going to help the appellant anymore.

Therefore, I find that the lands pertaining to Khata no. 26 and 28 which are included in Schedule B of the plaint has not been partitioned by metes and bounds. Therefore, Girdhari Gope and Bhola Gope are entitled equal half share to the lands of Schedule B' property. Therefore, the finding of the lower Court as far as Schedule 'B' property is concerned stands upheld."

Paragraphs 25 to 27 of the appellate court's judgement dealing with cross appeal of the plaintiffs are quoted as under:-

“25. Cross Appeal: The learned lawyer of the appellant submitted that the finding of the issue No. IX and X are not correct and further emphasize that Ext. E series is an evidence of separate acquisition of property as well as allotment by 3/4th share. From going through the contents of the plaint vide para 6, it is pleaded that lands belonging to khata no.25,27,113 & 114 were jointly acquired by Girdhari Gope and Bhola Gope and Girdhari Gope got recorded bigger area in his name vide Khata no.25 & 27 and lesser area in the name of Bhola Gope under Khata no.113 & 114. Though, both were joint owners having equal share. In the Written statement vide para 21 & 22 of the written statement, the fact has been denied that lands of these four khatas are coparcenary property and that has not been acquired out of joint family fund. There is no pleading in the written statement that khata no.25 & 27 were acquired by Girdhari Gope out of his personal income and a vague reply has been mentioned.

26. The court below vide para 48 of his judgment has discussed the Issue and had concluded that there is no evidence that what was the income and expenditure and what was the saving of joint family because only after expenses the amount which is called nucleolus of the joint family. P.W. – 1 vide para 41 & 42 has stated that Khata no.25, 27, 113 & 114 were gairmajurwa and has been settled in the name of Girdhari Gope and Bhola Gope with respect to the Khata no.25, 27 and 113, 114 respectively. Further, DW – 4 vide para 11 of his cross-examination has stated that Gudru Gope had his land vide Khata no.27.

27. From the above statement, I find that the lands pertaining to Khata no.25, 27, 113 & 114 were not self-acquired property of Girdhari Gope and Bhola Gope rather it was jointly acquired by persons constituting a joint Hindu Family. There is no any separate income of the parties. The D.W – 4 has stated in his cross-examination vide para 33 that Bhola pre-deceased Girdhari Gope and latter were looking after all the business of the family which further corroborate the pleading and statement of the plaintiff witnesses. D.W. – 4

being the oldest witness and he has occasion to see even Gudru Gope and has attended the Shradh ceremony of Bodhu Gope and Muthu Gope appears to be most trusted witness on the facts pleaded by parties. Therefore, I find that the finding of lower Court as far as Issue No. IX and X are concerned stands set aside and it is ordered that Schedule 'C' land though does not fall under category of coparcenary property, however, it was a joint Hindu family property and is liable to be partitioned amongst parties between Girdhari Gope and Bhola Gope by half and half."

Findings of this court.

25. Before proceeding to decide the substantial question of law in the light of the facts of this case, it would be useful to refer to the provisions of law and the judgements cited by the learned counsel for the parties.

26. Section 18 of the Act of 1956 is quoted as under: -

"18. Full blood preferred to half blood- Heirs related to an interstate by full blood shall be preferred to heirs related by half blood, if the nature of the relationship is the same in every other respect."

27. A few provisions which have been cited by the learned counsels from the book namely *Mulla's Hindu Law 20th Edition Volume 1* are as under:-

Rule 28. INHERITANCE NEVER IN ABEYANCE (Page 102)

(1) On the death of a Hindu, the person who is then his nearest heir becomes entitled at once to the property left by him. The right of succession vests in him immediately on the death of the owner of the property, Cannot, under any circumstance, remain in abeyance in expectation of the birth of a preferable heir, where such heir was not conceived at the time of the owner's death.

(2) Where the estate of a Hindu has vested in a person, who is his nearest heir at the time of his death, he cannot be divested of a property, except either by the birth of a preferable heir such as a son or a daughter, who was conceived at the time of his death, or by adoption in certain cases of a son to the deceased."

Rule 211. HINDU COPARCENARY (page 359)

Hindu coparcenary is a much narrower body than the joint family. It includes only those persons who acquire by birth an interest in the joint coparcenary property. These are the sons, grandsons and great-grandsons of the holder of the joint property for the time being, in other words, the three generations next to the holder in unbroken male descent (See S 217) The above propositions must be read in the light of what has been stated in the note at the top of this chapter. After the amendment of the Hindu Succession Act in 2005, a daughter of a coparcener has been included as a coparcener along with the sons of the coparcener. The commentary will now have to be read accordingly.

To understand the formation of a coparcenary, it is important to note the distinction between ancestral property and separate property. Property inherited by a Hindu from his father, father's father or father's father's father, is ancestral property, Property inherited by him from other relations is his separate property. The essential feature of ancestral property is that if the person inheriting it has sons, grandsons or great-grandsons, they become joint owner's coparceners with him. They become entitled to it due to their birth. These propositions also must be read in the light of what has been stated in the note at the top of this chapter.

Illustrations

(a) Prior to the coming into force of the Hindu Succession Act 1956, if A who had a son B, inherited property from his father, it became ancestral property in his hands, and B became a coparcener with his father. Though A as head of the family was entitled to hold and manage the property, B was entitled to an equal interest with his father A, and to enjoy it in common with him. B could, therefore, restrain his father from alienating it except in the special cases where such alienation was achieved by law, and he could enforce partition of it against his father. On his father's death, B took the property by right of survivorship and not by succession.

(b)

(c)

(d).....Ancestral property is a species of coparcenary property. As stated above, if a Hindu inherits property from his father, it becomes ancestral in his hands as regards his son. In such a case, it is said that the son becomes a coparcener with the father as regards the property so inherited, and the coparcenary consists of the father and the son. However, this does not mean that coparcenary can consist only of the father and his sons. It is not only the sons, but also the grandsons and great-grandsons, who acquire an interest by birth in the coparcenary property.....

Rule 212. FORMATION OF COPARCENARY (Page 361)

The conception of a joint Hindu family constituting a coparcenary is that of a common male ancestor with his lineal descendants in the male line within four degrees counting from, and inclusive of, such ancestor (or three degrees exclusive of the ancestor). No coparcenary can commence without a common male ancestor, though after his death, it may consist of collaterals, such as brothers, uncles, nephews, cousins, etc.

Genesis of Coparcenary (Page 362)

A coparcenary is created in the following manner A Hindu male A, who has inherited no property at all from his father, grandfather, or great-grandfather acquires property by his own exertions. A has a son B, B does not take any vested interest in the self-acquired property of A during A's lifetime but on A's death, he inherits the self-acquired property of A. If B has a son C, C takes a vested interest in the property by reason of his birth, and the property inherited by B from his father A, becomes ancestral property in his (Bs) hands, and B and C are coparceners as regards the property. If B and C continue joint, and a son D is born to C, he enters the coparcenary by the mere fact of his birth. Moreover, if a son E is subsequently born to D, he too becomes a coparcener

221. ANCESTRAL PROPERTY (Page 372)

(1) Property inherited from paternal ancestor All property. inherited by a male Hindu from his father, father's father or father's father's father, is ancestral property. The essential feature of ancestral property according to Mitakshara law is that the sons, grandsons and great-grandsons of the person who inherits it, acquire an interest, and the rights attached to such property at the moment of their birth. Thus, if A inherits property, whether movable or immovable, from his father or father's father or father's father's father, it is ancestral property as regards his male issue.....

..... A person inheriting property from his three immediate paternal ancestors holds it, and must hold it in coparcenary with his sons, son's sons, and son's son's sons, but as regards other relations, he holds it, and is entitled to hold it as his absolute property. The result is that if a person inheriting property from another one of his three immediate paternal ancestors has no son, son's son, or son's son's son, the property is his absolute property, and no relations of his are entitled to any interest in it in his lifetime.”

43. ORDER OF SUCCESSION AMONG SAPINDAS

.....

Brother

- (a) Of the whole blood;
- (b) Of the half blood.

Brothers of the whole blood succeed before those of the half blood. The half-brothers referred to here are sons of the same father by a different mother. Sons of the same mother by a different father are not entitled to succeed as ‘brothers.’

44. WHOLE BLOOD AND HALF-BLOOD

(1) A sapinda of the whole blood is preferred to a spinda of the half-blood. This preference, however, is confined to sapindas of the same degree of descent from the common ancestor, it does not apply to sapindas of different degrees.

.....

Thus, a paternal uncle of the whole blood is entitled to succeed in preference to a paternal uncle of the half blood, they being sapindas of the same degree of descent. However, a paternal uncle of the half-blood is entitled to inherit in preference to the son of a paternal uncle of the whole blood, the former being nearer sapinda of the deceased than the latter.”

28. In the judgement reported in **1983 SCC Online Bombay 304 (Waman Govind Shindore v. Gopal Baburao Chakradeo)**, it has been held in paragraph 13 that on a plain reading of the provisions of section 18 of the Act of 1956, it appears to be clear that it is nothing but a substantial reproduction of the prevalent rule of Hindu Law under which relations of the whole blood were preferred to those of the half-blood if their degree of relationship to the deceased was the same. Section 18 provides for a preference of one category of heirs to another.

29. It has been held in the judgement passed in the case of **Arunachala Gounder v. Ponnusamy, (2022) 11 SCC 520** that if a property of a male Hindu dying intestate is a self-acquired property or obtained in partition of a coparcenary or a family property, the same would devolve by inheritance and not by survivorship, and a daughter of such a male Hindu would be entitled to inherit such property in preference to other collaterals.

Substantial question of law no. (ii) as framed in S.A No. 393 of 2016

(ii) Whether the courts below have misconstrued Section 18 of the Hindu Succession Act while dealing with Law of Succession regarding inheritance of the property of Gurdu Gope?

30. This question is to be decided in the light of the aforesaid provisions and the judgments.

31. The property of Gudru Gope is in schedule B of the plaint. The admitted fact which has been recorded at paragraph 27 of the Trial Court's judgment is that-

- a. Gudru Gope was the common ancestor of the parties who had acquired some lands in village Bujurg-Zamira under Ramgarh Thana of the district of Hazaribagh which were recorded in his name in the record of rights of last Cadastral Survey and Settlement under khata no. 7.
- b. Gudru Gope had two wives.
- c. From the first wife, Gudru Gope had three sons namely Girdhari Gope, Bhondur Gope and Mithu Gope. Out of them Bhondur Gope and Mithu Gope died issueless.
- d. From the second wife of Gudru Gope, father of the original plaintiffs namely, Bhola Gope was born.
- e. The defendants are from the branch of Girdhari Gope whereas the plaintiffs are sons and grandsons of Bhola Gope.
- f. Lands of old khata no. 7, which were subsequently included in new khata no. 26 & 28 of revisional survey are ancestral property.

32. As per the Plaintiffs (descendants of Bhola Gope), after the death of the Gudru Gope, his four sons jointly inherited the lands of old khata no. 7, which became their ancestral joint family property in the hands of Girdhari Gope and his brothers and Bhola Gope, each having an equal half share. They were governed by the Mitakshara School of Hindu Law, and the said joint family property was never partitioned by metes and bounds either between the sons of Gudru Gope or amongst Girdhari Gope

and the sons of Bhola Gope, but they were cultivating some lands jointly and some lands separately according to their convenience. After the death of Bhondhu Gope and Mithu Gope, Girdhari Gope and Bhola Gope both became owners of eight annas shareholders.

33. Said Gudru Gope had two wives. From the first wife, he had three sons: Girdhari Gope, Bhondhu Gope and Mithu Gope. Out of them, two of the sons namely, Bhondhu Gope and Mithu Gope died issueless, and their branches were extinguished and their shares devolved upon Girdhari Gope, who became shareholder to the extent of 8 Annas. From the wedlock of second wife, Gudru Gope had one son namely, Bhola Gope, who became a sharer to the extent of 8-annas. The Plaintiffs stated that after Gudru Gope's death, his sons jointly inherited Khata No. 7, governed by Mitakshara School of Hindu Law, and the property was never partitioned by metes and bounds.

34. With respect to schedule C properties, it was asserted that they were purchased from the earnings of joint family property i.e., schedule B property and were also required to be partitioned.

35. As per the defendants (descendants of Girdhari Gope), Gudru Gope had already divided his property into three equal shares during his lifetime: one 'Jethans' share was allotted to Girdhari Gope, $\frac{2}{3}$ rd share was allotted to Girdhari Gope, Bhondhu Gope and Mithu Gope (sons from the first wife), and $\frac{1}{3}$ rd share was allotted to Bhola Gope (son from the second wife). It was further stated that Girdhari Gope, Bhondhu Gope and Mithu Gope were joint, while Bhola Gope lived separately.

It has been argued that after Gudru Gope's death, Bhola Gope caused nuisance, leading to a village meeting on *Jyeth Sudi 14 Sambat 1975*. The dispute was amicably settled, and a memorandum was prepared, confirming the previous partition. After the death of Mithu Gope and Bhondhu Gope, the sole surviving brother, Girdhari Gope succeeded them. The Defendants denied that Girdhari Gope became eight anna sharer and argued that Khata No. 7 was not joint family property. It was asserted that the earlier partition merged into the decree of Partition Suit No 25/1938. They contended that Partition Suit No. 25/1938 allotted 7.31 acres to Bhola Gope from Khata No 7. They alleged that Rama Gope and others

wrongly influenced the revisional survey entries for Khata Nos 26 and 28 (where 3.19 acres were wrongly entered), trying to obtain Jamabandi in their names. The Defendants denied that Khata Nos. 25, 27, 113 and 114 are coparcenary property acquired from joint family funds or that Plaintiffs have a half share in Schedule 'C' lands. They asserted that the Plaintiffs and their ancestors have already transferred their allotted lands as per the 1938 partition. The Defendants argued that there is no occasion for further partition, as it has already occurred.

36. *This court finds that* as per Rule 28 of *Hindu Law by Mulla*, on the death of a Hindu, the person who is then his nearest heir becomes entitled at once to the property left by him and the right to succession vests in him immediately on the death of the owner of the property and it cannot, under any circumstances, remain in abeyance. Thus, applying the aforesaid Rule, in this case, upon the death of Gudru Gope, his 4 sons immediately became entitled to 1/4th share each. Thereafter, immediately upon the death of Bhondu Gope and Mithu Gope, two full brothers of Girdhari Gope, their 1/4th share each stood devolved/vested in Girdhari Gope (their full brother) and this is the position of law even as per section 18 of the Act of 1956.

37. As per Rule 212 of *Hindu Law by Mulla* a joint Hindu family constituting a coparcenary is that of a common male ancestor with his lineal descendants in the male line within four degrees counting from, and inclusive of, such ancestor and no coparcenary can commence without a common male ancestor. A coparcenary is always formed and started by a person who is receiving property from his father. It becomes ancestral property in his hands, and therefore his own descendants would acquire rights over the said property by birth as he forms as coparcenary with his descendants with respect to the property which he inherits from his father.

38. Even under the Old Hindu Law, the law regarding inheritance amongst full blood and half blood was the same as Section 18 of the Act of 1956. Rule 43 of *Mulla Hindu Law, 20th Edition, Volume 1* provides for order of succession amongst sapindas and the relevant portion which deals with brothers of whole blood and half-blood has been mentioned in sub-clause 9. Brothers of the whole blood succeed before those of the half-

blood. The half-brothers referred to here are sons of the same father by a different mother. Therefore, it shall appear that even prior to 1956, the prevailing Hindu Law provided that a brother of whole blood would succeed and be preferred before a brother of half-blood. In fact, section 18 of the Hindu Succession Act, 1956, only recognized and reaffirmed the said principle of old Hindu Law.

39. There are concurrent findings by both the courts that there has been no previous partition in connection with the suit properties. There is no dispute that schedule B property was self-acquired property of the common ancestor Gudru Gope. With respect to the substantial question of law no.(i), the point would be whether schedule B would devolve through survivorship as coparcenary property or by succession.

40. If it has to devolve through survivorship as coparcenary property, then upon death of two full brothers of Girdhari Gope, schedule B property would go into the hands of the surviving coparceners, that is, Girdhari Gope and Bhola Gope and their net share would be $\frac{1}{2}$ and $\frac{1}{2}$ over schedule B property. If it has to devolve through succession of joint family ancestral property, then upon death of two full brothers of Girdhari Gope, the $\frac{1}{4}$ th share of each deceased brother would go to Girdhari Gope being the full blood brother in terms of section 18 of the Act of 1956 and not to Bhola Gope being related by half-blood with the deceased.

41. The schedule B property was admittedly self-acquired property of Gudru Gope. He was survived by his four sons, three from first wife, namely Girdhari Gope, Bhondur Gope, and Mithu Gope, but later two sons died issueless and only Girdhari Gope survived and one son from 1st wife, namely Bhola Gope. Thus, after the death of the Gudru Gope, his four sons jointly inherited the lands of khata no. 7 (schedule B property) , which became their ancestral joint family property in the hands of Girdhari Gope and his brothers and Bhola Gope, each having equal share. Since the property was the self-acquired property of Gudru Gope he did not form a coparcenary with his sons with respect to his self-acquired property and accordingly, the schedule B property would devolve by inheritance through succession and not by survivorship.

42. The parties are governed by the Mitakshara School of Hindu Law, and the said ancestral joint family property in the hand of four sons of Gudru Gope was never partitioned by metes and bounds and plea raised by the defendants of previous partition has been rejected by the learned court. Since the schedule B property was ancestral joint family property and not a coparcenary property, the property immediately devolved by succession upon the four sons of Gudru Gope and would be a coparcenary property with respect to 1/4th share amongst descendants of each of the son as each son and his descendants would form a separate coparcenary amongst themselves. Since two full brothers of Girdhari Gope died issueless and the property in their hands did not acquire the status of coparcenary property, their share would devolve upon their full brother Girdhari Gope in terms of section 18 of the Act of 1956 and not to their half-brother Bhola Gope. Thus, Girdhari Gope would be entitled to 3/4th share of the property of his father Gudru Gope and Bhola Gope would continue to have 1/4th share as inherited from his father Gudru Gope by succession and would be ancestral joint family property in his hand and would acquire the status of coparcenary property only amongst him and his descendants.

43. *The 2nd substantial question of law as framed in S.A No. 393 of 2016 is accordingly answered by holding that the courts below have failed to consider applicability of Section 18 of the Hindu Succession Act, 1956 while dealing with Law of Succession regarding inheritance of the self-acquired property of Gurdu Gope in the hands of his four sons – three full brothers and one half brother and further regarding inheritance by succession upon death of two full brothers out of the three from the 1st wife. Thereby the learned courts have failed to consider that the share of two deceased full brothers would devolve upon their full brother, Girdhari Gope and not to half-brother Bhola Gope and consequently, Girdhari Gope would be entitled to 3/4th share in schedule B property and Bhola Gole would be entitled to 1/4th share in the schedule B property. The findings of the learned courts that the plaintiffs and defendants would be entitled to 1/2 share each, is set aside. The 2nd substantial question of law as framed in S.A No. 393 of 2016 is*

accordingly answered in favour of the appellants (defendants) and against the respondents (plaintiffs) and it is held that the sons of Bhola Gope (plaintiffs) would be entitled to 1/4th share of the schedule B property and the defendants would be entitled to 3/4th share of the Schedule B property.

The 1st Substantial question of law framed in both the cases.

(i) Whether the first appellate court has committed illegality in reversing the findings of the trial court in respect of issue no. 9 without discussing and giving reasons as to why first appellate court is reversing the aforesaid finding?

44. The *learned trial court* while deciding issue no. IX, as to whether the schedule-C property [Khata No. 25,27,113 and 114] is coparcenary property of plaintiffs and defendants observed in paragraph 48 of the judgment that except the statement of P.W. 1 (plaintiff no. 2) there was no other evidence on record to prove the fact that lands of Khata No. 25,27,113 and 114 were acquired from the income of joint family and P.W. 1 had not clarified as to what was the income of joint family and what was its expenses and savings from which the lands of the aforesaid khatas were acquired. The learned trial court also recorded that though in the evidence it has come that the family was possessing about 30 acres of land but there was no evidence on record to show as to what was the extent of income and expenditure and what was the savings of the joint family because only after the expenses the amount which is saved can be called the ‘nucleus’ of joint family. The court also recorded that it was not the case of the plaintiffs that *Karta* of the joint family had acquired the lands in the name of different family members of the joint family, rather it was an admitted fact that the lands were acquired by Girdhari Gope and Bhola Gope. The learned Trial Court held that only because the family is joint, there can be no presumption that the property which has been acquired by a member of the ‘joint family’ will be ‘joint family property’ even though it is recorded in the name of that particular family member. The learned trial court was of the definite view that the plaintiffs have not been able to prove by adducing good and convincing evidence that there

was joint family nucleus from which the lands of schedule C [Khata nos. 25,27,113 and 114] were acquired.

45. The learned trial court also recorded that even as per the record of rights, Khata No. 25 and 27 were recorded in the sole name of Girdhari Gope and Khata No. 113 and 114 were recorded in the sole name of Bhola Gope and there was no material to show that the plaintiffs raised any objection in connection with such entry in record of rights.

46. The learned court ultimately held that the plaintiffs have not been able to prove by good evidence that the land described in schedule-C [Khata nos.25, 27, 113 and 114] were coparcenary/joint family property and held that there was no unity of title and possession between the parties with respect to the lands described in schedule-C [Khata nos. 25,27,113 and 114] and ultimately held that the land in Schedule-C [Khata nos. 25,27,113 and 114] were not liable for partition. Consequently issue no. IX was decided against the plaintiffs.

47. So far as the *learned 1st appellate court* is concerned, the point regarding schedule C of the property was taken up in cross appeal filed by the plaintiffs from paragraph 25 to 27. The learned 1st appellate court recorded that it was pleaded in the plaint that Khata No. 25,27,113 and 114 were jointly acquired by Girdhari Gope and Bhola Gope and Girdhari Gope got recorded bigger area in his name by Khata No. 25 and 27 and lesser area in the name of Bhola Gope by khata No. 113 and 114. It was claimed by the plaintiffs that both were having equal shares and were joint owners of the property. In the written statement, it was denied that the aforesaid land in Khata No. 25,27,113 and 114 were coparcenary property and it was also stated that the property was not acquired out of joint family fund. The court also observed that there was no pleading in the written statement that Khata No. 25 and 27 were acquired by Girdhari Gope out of his personal income and a vague reply was given. The learned 1st appellate court thereafter considered the findings of the learned trial court as recorded in paragraph 48 of the trial court's judgment vide paragraph 26 of the 1st appellate court's judgment. The learned 1st appellate court referred the evidence of P.W. 1 (the plaintiff no. 2) who stated in paragraph 41 and 42 that Khata No. 25,27,113 and 114 were *gair*

majarua land and were settled in the name of Girdhari Gope with respect to khata no. 25 and 27 and in the name of Bhola Gope with respect to khata nos. 113 and 114. D.W. 4 in his cross examination has stated that Gudru Gope had his land in khata no. 27.

48. From the aforesaid materials, the learned 1st appellate court was of the view that the lands in Khata No. 25,27,113 and 114 were not self-acquired property of Girdhari Gope and Bhola Gope, rather it was jointly acquired by the persons constituting a joint family. It was also observed that there was no separate income of the parties and D.W. 4 in his cross examination has stated that Bhola Gope had predeceased Girdhari Gope and Girdhari Gope was looking after all the business of the family which was further corroborated by the pleadings and statements of the plaintiffs' witnesses. The court was of the view that D.W. 4 was the oldest witness and was most trusted witness on the facts pleaded by the parties. The learned 1st appellate court ultimately held that Schedule-C land though does not fall under the category of coparcenary property, however it was a joint Hindu family property and was liable to be partitioned amongst parties between heirs of Girdhari Gope (defendants) and heirs of Bhola Gope (plaintiffs) by $\frac{1}{2}$ and $\frac{1}{2}$.

49. The learned counsel for the respondents has relied upon the judgment reported in **1994 0 AIR (AP) 134 [Jupudi Venkata Vijaya Bhaskar -vs- Jupudi Kesava Rao (died)]** wherein it has been observed by referring to an earlier judgement of the Hon'ble Supreme Court that the separate property of a member of a joint Hindu family may be impressed with the character of joint family property if it is voluntarily thrown by him into the common stock with the intention of abandoning his separate claim therein. The separate property of a Hindu ceases to be a separate property and acquires the characteristic of a joint family or ancestral property not by any physical mixing with his joint family or his ancestral property but by his own volition and intention by his waiving and surrendering his separate rights in it as separate property. The necessary pre-condition for the application of the doctrine of Blending is the existence of coparcenary property as recognized by the Supreme Court in **Mallesappa Ban-deepa Desai v. Desai Mallappa, AIR 1961 SC 1268** that the doctrine of

throwing into common stock inevitably postulates that the owner of a separate property is a coparcener who has an interest in the coparcenary property and desires to blend his separate property with the coparcenary property. In the said case there was no coparcenary property and the plaint schedule properties were alleged to be joint family properties and accordingly, the question of blending separate property with the coparcenary property did not arise. By mere declaration of status as "hindu Undivided Family", it could not be said that the party had blended his private properties with that of the joint family properties.

50. In the judgement passed by the Hon'ble Supreme Court reported in **(2003) 10 SCC 310 [D.S. Lakshmaiah & Anr. vs. L. Balasubramanyam & Anr]** which has been relied upon by both the parties, the question to be determined as is reflecting from paragraph 7 of the report was that as to who is required to prove the nature of property, whether it is a 'joint Hindu family property' or 'self-acquired property'. In the said case the factual background to decide the point was stated in paragraph 8 of the report wherein it has been observed that there was evidence that the property in item no. 2 was joint family property but there was no evidence that the said property was yielding any income or that any nucleus was available with the aid of which property in item no.1 could be purchased and there was no evidence to show the income from item 2 property or the value of the item 2 property and at the same time no evidence was led to prove that the party had separate income to acquire item 1 property. The Hon'ble Supreme Court has considered numerous judgements **including the following: -**

- a. In **Appalaswami v. Suryanarayanamurti [AIR 1947 PC 189 : 1947 All LJ 587]** the Privy Council held that as per Hindu law proof of the existence of a joint family does not lead to the presumption that property held by any member of the family is joint, and the burden rests upon anyone asserting that any item of property is joint to establish the fact. But where it is established that the family possessed some joint property which from its nature and relative value may have formed the nucleus from which the property in question may have been acquired, the burden shifts to the party alleging self-acquisition

to establish affirmatively that the property was acquired without the aid of the joint family property.

- b. In ***Srinivas Krishnarao Kango v. Narayan Devji Kango* [AIR 1954 SC 379]** the contention that was urged on behalf of the appellant was that the burden was wrongly cast on the plaintiff of proving that the acquisition of the properties were made with the aid of joint family funds as there were joint family properties to the extent of 56 acres and accordingly it must be presumed that the acquisitions were made with the aid of joint family funds and, therefore, the burden lay on the defendants who claimed that they were self-acquired acquisitions to establish that they were made without the aid of joint family funds. The Hon'ble supreme court rejected the argument and held that only properties were proved but there was no satisfactory evidence about the income which those lands were yielding at the material time and the important thing to be considered is the income which the nucleus yields and explained further by giving an example that a building in the occupation of the members of a family and yielding no income could not be a nucleus out of which acquisitions could be made, even though it might be of considerable value and on the other hand, a running business, in which the capital invested is comparatively small, might conceivably produce substantial income which may well form the foundation of the subsequent acquisitions.
- c. In ***Mudi Gowda Gowdappa Sankh v. Ram Chandra Ravagowda Sankh* [(1969) 1 SCC 386]** it was reiterated that the burden of proving that any particular property is joint family property in the first instance is upon the person who claims it to be so. But if the possession of a nucleus of the joint family property is either admitted or proved, any acquisition made by a member of the joint family is presumed to be joint family property. This is, however, subject to the limitation that the joint family property must be such as with its aid the property in question could have been acquired. It is only after the possession of an adequate nucleus is shown, that the onus shifts on to the person who claims the property as self-acquisition to affirmatively make out that the property was acquired without any aid from the

family estate. The Hon'ble Supreme Court did not agree that only upon showing possession of adequate nucleus the onus shifts and observed that while considering the question of shifting of burden, the important thing to consider is the income which the nucleus yields.

- d. In ***Baikuntha Nath Paramanik v. Sashi Bhusan Pramanik [(1973) 2 SCC 334]*** the Court again held that when a joint family is found to be in ***possession of nucleus sufficient to make the impugned acquisitions*** then a presumption arises that the acquisitions standing in the names of the persons who were in the management of the family properties are family acquisitions.
- e. In ***Surendra Kumar v. Phoolchand [(1996) 2 SCC 491]*** the Court held that where it is established or admitted that the family which possessed joint property which from its nature and relative value may have formed sufficient nucleus from which the property in question may have been acquired, the presumption arises that it was joint property and the burden shifts to the party alleging self-acquisition to establish affirmatively that the property was acquired without the aid of the joint family funds.

51. The Hon'ble Supreme Court in ***(2003) 10 SCC 310 (supra)*** ultimately held in paragraph 18 of the judgement that there is no presumption of a property being joint family property only on account of existence of a joint Hindu family. The one who asserts, has to prove that the property is a joint family property. If, however, the person so asserting proves that there was nucleus with which the joint family property could be acquired, there would be presumption of the property being joint and the onus would shift on the person who claims it to be self-acquired property to prove that he purchased the property with his own funds and not out of joint family nucleus that was available.

52. In the facts of the said case in ***(2003) 10 SCC 310 (supra)*** the Hon'ble Supreme court held in paragraph 17 of the judgement that the respondents of the said case having failed to discharge the initial burden of establishing that there was any nucleus in the form of any income whatsoever from Item 2 property and no other nucleus was claimed, the burden remained on the respondents to establish that Item 1 property was

joint family property. The Court further recorded that in this view, the fact that the first appellant has not led any evidence to establish his separate income is of no consequence insofar as the claim of the respondents is concerned. Under these circumstances, for failure to lead evidence, the respondents' claim of Item 1 to be joint family property would fail as was rightly held by the first appellate court in the said case before the Hon'ble Supreme Court .

53. In the aforesaid judgment of the Hon'ble Supreme court itself, the argument that even if assuming that the property was self-acquired property of the appellant but the appellant blended it with the joint family property and therefore, it had become joint family property, was also rejected by observing that the law on the aspect of blending is well settled that property separate or self-acquired of a member of a joint Hindu family may be impressed with the character of joint family property if it is voluntarily thrown by the owner into the common stock with the intention of abandoning his separate claim therein. It was observed that in order to establish such abandonment, a clear intention to waive separate rights must be established. It was also observed that from the mere fact that other members of the family were allowed to use the property jointly with himself, or that the income of the separate property was utilised out of generosity to support persons whom the holder was not bound to support, or from the failure to maintain separate accounts, abandonment cannot be inferred, for an act of generosity or kindness will not ordinarily be regarded as an admission of a legal obligation. A reference was made in the said case to the judgement of ***Lakkireddi Chinna Venkata Reddi v. Lakkireddi Lakshmama [AIR 1963 SC 1601: (1964) 2 SCR 172]*** and ***K.V. Narayanan v. K.V. Ranganandhan [(1977) 1 SCC 244]***. In the said case, the respondents did not lead any evidence on the aforesaid aspects and, therefore, it could not be held that the first appellant blended Item 1 property into the joint family account. It was held that Item 1 property cannot be held to be joint family property and the judgement impugned was set aside and the judgment and decree of the first appellate court was restored by the Hon'ble Supreme Court in ***(2003) 10 SCC 310 (supra)*** .

54. Paragraph 48 of the learned trial court's judgement is quoted as under:-

“48. I find that except this statement of PW-1 there is no other evidence on the record to prove the facts that lands of khata no. 25, 27, 113 & 114 were acquired from the income of joint family. But PW-1 has not clarified that what was the income of the joint family, what was the expenses and what was the savings from which the lands of aforesaid khata were acquired. Though, there is evidence that the family possess about 30 acres of lands. But there is no evidence on the record to show that what was the extent of income and expenditure and what was the savings of the joint family, because only after expenses, the amount which is saved is called the “nucleous” of the joint family. I find that a bald statement has been made in this regard in the pleading as well as evidence of PW-1. There is no case of the plaintiffs that karta of the joint family had acquired the lands in the name of different family members of joint family rather it is admitted fact that lands were acquired by Girhari Gope and Bhola Gope. Only because the family is joint, there can be no presumption that the property which has been acquired by a member of the family will be joint family property even though it is recorded in the name of that particular family member. I find that the plaintiffs have not been able to prove by adducing good and convincing evidence that there was joint family nucleous from which the lands of khata no. 25, 27, 113 and 114 were acquired. I have stated above there is a bald statement that the property mentioned in schedule 'C' is joint family property. I also went through the record of rights of khata nos. 25 & 27 which have been recorded in the sole name of Girdhari Gope and khata no. 113 & 114 recorded in the sole name of Bhola Gope. There is no material to show that the plaintiffs have raised any objection before the revenue authority in respect of the aforesaid wrong entry in the record of rights. In such view of the matter, I find and hold that plaintiffs have not been able to prove by good evidence that lands described in schedule 'C' of the plaint are coparcenary/joint family property. I further find and hold that there is no unity of title and possession between the parties with respect to the lands described in schedule 'C' of the plaint and as such the aforesaid lands are not liable to be partitioned. Accordingly, issue no. IX is decided against the plaintiffs.”

55. The learned 1st Appellate Court in para 26 recorded that the learned Trial Court in paragraph 48 of the judgment had concluded that there was no evidence as to what was the income and expenditure and what was the savings of the joint family because only after expenses, the amount which is called nucleus of the joint family can be arrived. The appellate court also observed that D.W.4 in his cross examination had stated that Gudru Gope (common ancestor) had his land vide Khata No. 27. The learned appellate court in para 27 held that from the above statement of D.W-4, it appeared that the land pertaining to khata no. 25,27,113 and 114 were not the self-acquired property of Girdhari Gope and Bhola Gope (both sons of Gudru Gope) rather they were jointly acquired by persons constituting joint family. The court then observed that there were no separate income of the parties and D.W-4 had stated in his cross examination that Bhola Gope had predeceased Girdhari Gope and latter was looking after the family business which corroborated the pleadings and the statement of the plaintiffs' witnesses and found that D.W-4 was the most trusted witness. The finding of the trial court on issue no. IX and X were set-aside and it was held that though Schedule C property [khata no. 25,27,113 and 114] was not coparcenary property, but was a joint Hindu Family Property.

56. This Court finds that it was nobody's case that Schedule C property [Khata Nos. 25,27, 113 and 114] were acquired by Gudru Gope rather it was the specific case of the plaintiffs that upon death of Gudru Gope the self-acquired property of Gudru Gope [schedule B property] devolved upon his sons and Girdhari Gope and Bhola Gope (both sons of Gudru Gope), who acquired schedule C property from the joint family fund from schedule B property. Therefore, reference of cross examination of D.W-4 that Gudru Gope (common ancestor) had his land vide Khata No. 27 has no relevance. The case of the plaintiffs was that Schedule C property was jointly acquired by Girdhari Gope and Bhola Gope from the income of the properties of Schedule-B and therefore they were entitled to half and half share irrespective of entry made in the record of rights. It is not in dispute that Khata No. 25 and 27 was recorded in the name of Girdhari Gope and Khata No. 113 and 114 was recorded in the name of Bhola Gope. This court finds that though there is a finding of the learned

1st appellate court that there is no separate income of the parties, but there is no finding that there was a nucleus, much less adequate/sufficient nucleus in the joint family from schedule B property [no other property of the family has been referred] so as to enable Girdhari Gope and Bhola Gope to acquire Schedule-C property. It was nobody's case that there was joint family business from which schedule C property could be acquired which could partake the character of joint family property and other wise also there is no material regarding income from such business much less sufficient income to constitute adequate nucleus to acquire schedule C property. Further, there is neither any pleading nor any finding that the properties acquired by Girdhari Gope and Bhola Gope (both sons of Gudru Gope) were thrown into the joint family and thereby they constituted joint family property.

57. The learned 1st appellate court has completely misdirected itself in law in the facts of this case while holding that schedule C was Joint family property inspite of the fact that the initial onus was upon the plaintiffs to prove that the schedule C property was acquired jointly by Girdhari Gope and Bhola Gope (both sons of Gudru Gope) from the joint family fund arising from joint family property of schedule B and that there was sufficient nucleus constituting joint family find to acquire the schedule C property. This onus was never discharged by the plaintiffs. In such circumstances, the onus never shifted upon the defendants to prove the source of fund to acquire the property of khata no. 25 and 27 [part of schedule C property] which was recorded in the name of Girdhari Gope. This court finds that the learned 1st appellate court has failed to meet the reasons of the learned trial court who held in paragraph 48 of the judgment that there was no evidence of nucleus in the joint family to acquire schedule C property and the trial court held that the same was not liable to be partitioned.

58. This court is of the considered view that the present case with respect to schedule C property is squarely covered by the judgement relied upon by the parties reported in **(2003) 10 SCC 310 (Supra)**, but in favour of the appellant (defendants) and against the respondents (plaintiffs).

59. This court finds that the plaintiffs failed to prove that schedule C property was joint family property and consequently this Court holds that the khata nos. 25 and 27 having been recorded in the name of Girdhari Gope (defendants) and Khata No. 113 and 114 having been recorded in the name of Bhola Gope (plaintiffs) were their individual properties and cannot be termed as their Joint Family Properties. Though the defendants had not stated that they had purchased the Khata No. 25 and 27 out of their personal income but they had clearly denied that stand of the plaintiffs that the lands in schedule C were acquired out of joint family fund. In such circumstances, the onus was upon the plaintiffs to prove that there was nucleus in the form of an income from Schedule-B property to acquire Schedule-C property. The initial burden of establishing nucleus and also sufficiency of nucleus in the joint family to show that schedule-C property could be acquired from the income of other joint family property (schedule B) did not shift upon the defendants and merely because the defendants did not specifically plead that Girdhari Gope had separate income and had not proved that Girdhari Gope had separate income to acquire the lands in Khata No. 25 and 27 which is a part of Schedule-C property, is of no consequence. It was enough for the defendants to plead that the schedule-C property was not acquired out of joint family fund. The plaintiffs in the present case have failed to discharge their onus when seen in the light of the judgment passed by the Hon'ble Supreme Court reported in **(2003) 10 SCC 310 (Supra)**, the finding of the learned 1st appellate court with respect to issue no. (IX) is perverse and consequently, the finding of the learned 1st appellate court that Schedule-C property was a joint family property liable to be partitioned between Girdhari Gope and Bhola Gope by ½ and ½ is also not in accordance with law. Accordingly, it is held that the learned 1st appellate court had committed illegality in reversing the finding of the learned trial court in respect of issue no. (IX) and the judgement of the 1st appellate court has been passed without discussing and giving reasons, much less adequate and acceptable reasons as to why the 1st appellate court was reversing the aforesaid finding.

The 1st substantial question of law is accordingly decided in favour of the appellants (defendants) and against the respondents (plaintiffs).

60. As a cumulative effect of the aforesaid answers to the substantial questions of law in favour of the appellants(defendants), the finding of the learned 1st appellate court with respect to schedule C property is set-aside and the finding of the learned trial court with respect to schedule C property is upheld. Further, the finding of the learned trial court with regards to ½ and ½ share in schedule B property, which was upheld by the learned 1st appellate court, is set-aside by holding that the defendants and the plaintiffs would be entitled to share of ¾: ¼ instead of ½: ½ with respect to schedule B property.

61. These 2nd appeals are accordingly allowed in the aforesaid terms.

62. Office to prepare decree accordingly.

63. Pending interlocutory application, if any, is dismissed as not pressed.

64. Let this judgment be communicated to the learned court concerned through 'FAX/email'.

(Anubha Rawat Choudhary, J.)

Date of judgment 25.11.2025

Pankaj/Binit

Date of uploading: 26/11/2025